

ORIGINAL ORIGINAL

BEFORE THE
FEDERAL MARITIME COMMISSION

AMC USA, INC.

COMPLAINANT

VS.

INTERNATIONAL FIRST SERVICE S.A. a/k/a
IFS S.A., *its agents, affiliated, related and
partner companies*; and INTERNATIONAL
FIRST SERVICE ARGENTINA a/k/a AR- IFS.,
*its agents, affiliated, related and partner
companies*; and INTERNATIONAL FIRST
SERVICE USA, INC. a/k/a IFS USA, INC.;
and GLOBAL WINE LOGISTICS USA INC.
a/k/a GWL USA, INC.; and ANITA MCNEIL

RESPONDENTS

FMC Docket No. 10-01



NOTICE OF APPEARANCE

Please enter my appearance in this proceeding as counsel for:

Complainant, AMC USA, Inc.

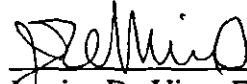
I request to be informed of service of the administrative law judge's initial or recommended decision and of the Commission's decision in this proceeding by:

Email: jdevivo@cckvt.com

Dated: New York, New York
January 20, 2010

CICHANOWICZ, CALLAN, KEANE,
VENGROW & TEXTOR, LLP
61 Broadway, Suite 3000
New York, New York 10006
Attorneys for Complainant AMC USA, Inc.

By:


Jessica De Vivo, Esq.

Tel. 212-344-7042 x 228

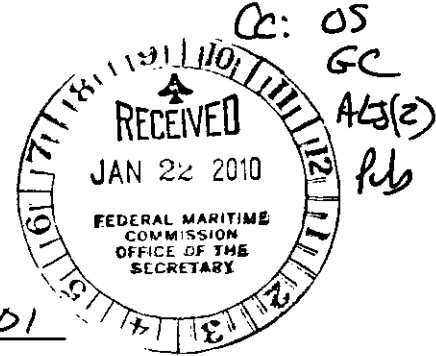
Fax. 212-344-7285

Email: jdevivo@cckvt.com

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FMC Docket No. 10-01

AMC USA, Inc.

COMPLAINANT

VS.

INTERNATIONAL FIRST SERVICE S.A. a/k/a IFS S.A., *its agents, affiliated, related and partner companies*; and INTERNATIONAL FIRST SERVICE ARGENTINA a/k/a AR- IFS ., *its agents, affiliated, related and partner companies*; and INTERNATIONAL FIRST SERVICE USA, Inc. a/k/a IFS USA, Inc.; and GLOBAL WINE LOGISTICS USA INC. a/k/a GWL USA, Inc.; and ANITA MCNEIL

RESPONDENTS



VERIFIED COMPLAINT

Come Now AMC USA Inc. and all related companies (collectively "Complainants"), through their undersigned attorneys, file this Verified Complaint pursuant to §11 of Shipping Act of 1894, as amended, ("Shipping Act", 46 U.S.C.A. §40101 *et seq.*) against International First Service S.A. a/k/a IFS S.A., *its agents, affiliated, related and partner companies*; and International First Service Argentina a/k/a AR- IFS, *its agents, affiliated, related and partner companies*; and International First Service USA, Inc. a/k/a IFS USA, Inc.; and Global Wine Logistics USA Inc. a/k/a GWL USA, Inc.; and Anita McNeil alleging violations of the Shipping Act as follows:

I. Complainant

1. Name: AMC USA Inc. ("AMC")
Incorporated: New Jersey, February 28, 1996
Registered: New York
Website: <http://www.amctransport.com/index2.html>
FMC: Registered, Licensed NVOCC (lic. #015598)
Address: Empire State Building
350 5th Avenue, Suite 829
New York, N.Y. 10118

II. Respondents

2. Name: International First Service S.A. a/k/a IFS S.A. ("IFS S.A.")
Incorporated: Non- U.S. / Foreign Nation
Website: http://www.ifscorporate.com/index_en.php
FMC: Registered, unlicensed non-US-based OTI/NVO org. no. 021088
Bond (no. 91570) issued August 22, 2007 - \$150,000.00
U.S. Agent: Kelli Lynn C. Toney
4000 Mitchellville Road, Suite 326B
Bowie, MD 20716
3. Name: International First Service USA, Inc. a/k/a IFS USA, Inc. ("IFS USA")
d/b/a Global Wine Logistics USA Inc. a/k/a GWL USA, Inc. ("GWL USA")
Incorporated: State of Delaware, August 27, 2009, file no. 4722899
Registered: New Jersey, September 9, 2009
Website: www.ar-ifs.com, under construction www.us-ifs.com
and http://www.ifscorporate.com/home_usa_eng.php
FMC: Not Registered / Not Licensed
N.J. Agent: Anita McNeil
110 Heritage Street
Robbinsville, N.J. 08691.
Address: 197 Route 18 South, Suite 3000
East Brunswick, N.J. 08816
4. Name: Anita McNeil
Residence: 110 Heritage Street
Robbinsville, N.J. 08691
Title: President at IFS USA and GWL USA
FMC: Not Registered / Not Licensed
5. Name: International First Service Argentina a/k/a AR-IFS ("AR-IFS")
Incorporated: Non- U.S. / Foreign Nation
Website: http://www.ifscorporate.com/home_argentina.php
FMC: Not Registered / Not Licensed
Address: 1926 Osvaldo Cruz Avenue
Buenos Aires
Argentina C1293ACQ

6. Name: Global Wine Logistics USA Inc. a/k/a GWL USA, Inc.
Incorporated: Delaware, October 16, 2009, file no. 47228824
Website: <http://www.glowinelog.com/index.html>
FMC: Not Registered / Not Licensed
U.S. Agent: Business Filings Incorporated
As Registered Agent for Global Wine Logistics, Inc.
108 West 13th Street
Wilmington, DE 19801
7. Name: Ipsen Logistics GmbH ("Ipsen")
Incorporated: Bremen Germany
Website: <http://www.ipсенlogistics.com/>
FMC: Not Registered / Not Licensed
Address: Ipsen Logistics FRANCE
Attention: Jean-Jacques Agu
99 Avenue des Ayalades
Parc Lavoisier, Bât. B
13015 Marseille

III. Jurisdiction

8. This action is brought pursuant to the Shipping Act of 1984, as amended, 46 U.S.C. § 40101 *et seq.* Complainant is a NVOCC within the meaning of 46 U.S.C. §40102(16)(19) Respondent IFS S.A. is an unlicensed non-US-based Ocean Transportation Intermediary ("OTI")/("NVO") within the meaning of 46 U.S.C. §40102(16)(19) and 46 C.F.R. §515.3 and §515.21(3) and §520. Respondents IFS USA and GWL USA are (i) located and doing business in the United States, (ii) are holding themselves out to the public as providers of transportation services, and (iii) have assumed responsibility for transportation within the meaning of 46 U.S.C. §40102(16)(18)(19) and §3(6)(A)(B)(17)(A)(B)(19), §8, §10 of the Shipping Act and within the meaning of 46 C.F.R. §515.2(i)(l)(o), §515.3, §520. Respondent AR-IFS is affiliated with IFS USA. Respondent Anita McNeil, President of IFS USA and GWL USA, is assumed to be the proposed Qualified Individual ("QI") for IFS USA d/b/a GWL USA within the meaning of 46 C.F.R. § 515.11.

9. The Complainant respectfully requests from the FMC reparations' for injuries individually and/or collectively caused by the Respondents violations of §8, §10 and §19 of the Shipping Act and the Commission's Regulations at 46 C.F.R. §515 and §520 pursuant to §11 of the Shipping Act. Complainants seek an order from the FMC that Respondents cease and desist from future violations of the Shipping Act. Further, Complainants seek an order from the FMC that the Respondents be denied FMC licensing.

10. In light of the circumstances and as provided for under the Shipping Act §11(h), 46 U.S.C. §41306 (*Injunctive relief sought by complainants*), the Complaints intend to seek declaratory and injunctive relief from the District Court of New Jersey in Newark.

IV. Statement of Facts and Matters Complained Of

11. AMC is a NVOCC whose business is comprised of import and export cargo to and from the United States. AMC had long standing relationships with importers of wine including Freedom Beverage, Grapes of Spain, USA Wine, Touton Selections, USA Wine, Buckeye Distribution, Philippe Bourgeois, Martignetti and Steve Miles Selections. Upon information and belief, IFS USA has provided and is providing OTI services to the foregoing importers.

12. From October 2003 through August 2009, Anita McNeil was employed by AMC as Executive Vice President. Ms. McNeil was the sales liaison for AMC's largest customer, Touton Selections, an importer of wine.

13. On August 17, 2009, without authorization to do so, Ms. McNeil emailed to her personal email account AMC's private documentation. (*See Exh. 1, private attachment omitted*)

14. On August 26, 2009, Ms. McNeil formally tendered her resignation to AMC.

15. On August 27, 2009, IFS USA was incorporated as a Delaware corporation. IFS USA publically identifies itself as "Freight Forwarders" with a goal "to provide international shipping services..." Further IFS USA offers to the public a "Comprehensive range of national or international freight customs and logistics services: Worldwide freight forwarding by sea and air (Groupage, FCL, chartering, proyect [sic] cargo), Customs brokerage, insurance, warehousing, overland transport, ancillary services connected with international transport, customized solutions, and flexible rates." IFS USA does not identify itself as an agent. (*See Exh. 2*)

16. On August 31, 2009, Emelyn Marquez, the Operations Manger at AMC in charge of the Wine and Spirits Department, resigned following a one week vacation in order to begin work the following day with IFS USA.

17. On September 4, 2009, the US-IFS.Com website for International First Services was updated.

18. On September 8, 2009, AMC was advised by its agent in Spain that one of its managers had resigned and that before leaving, the employee had deleted all of AMC's files from the company's computer server. The employee became part of a new company whom is now working with IFS USA. (*See Exh. 3*)

19. On September 9, 2009, Ms. McNeil registered IFS USA as doing business in New Jersey.
20. On September 14, 2009 Magalie Robine, a sales assistant at AMC, resigned to begin work at IFS USA.
21. On September 18, 2009, IFS USA negotiated trucking rates to pick up in Elizabeth, N.J. for delivery throughout the United States, Mexico and Canada. IFS USA did not identify itself as an agent. (*See Exh. 4*)
22. On September 23, 2009, Touton Selections terminated its business relationship with AMC effective immediately to work with IFS USA.
23. On September 28, 2009, IFS USA requested contract rates for ocean shipments from Cape Town to New York. IFS USA did not identify itself as an agent. (*See Exh. 5*)
24. On September 29, 2009, Nathia Akobia, manager of the Touton Selections account for AMC France, resigned to begin work at IFS S.A.'s partner company Ipsen Logistics. Ipsen Logistics holds a non-controlling interest in International First Service and now works with IFS USA instead of AMC.
25. On September 29, 2009, IFS USA arranged to export cargo from Wallingford, CT to Kapusany, Slovakia. IFS USA did not identify itself as an agent. (*See Exh. 6*)
26. On September 30, 2009, IFS USA arranged to export cargo from Wallingford, CT to Aquba, Jordan. IFS USA did not identify itself as an agent. (*See Exh. 6*)
27. Effective October 1, 2009, IFS S.A. (AMC's former South American contact) terminated its relationship with AMC to work with IFS USA. IFS S.A. identifies itself as

“Freight Forwarders” offering services in “...International ocean, air, and multimodal freight, Custom clearance, logistics and national transport of goods...”

28. On October 5, 2009, despite having unilaterally terminated relations with AMC, ISF collected one of AMC’s Chilean shipments without authorization and allegedly consigned it to IFS USA. However, AMC had already assigned another Chilean agent to collect this shipment for its customer. This caused significant problems for AMC, its new Chilean agent and its customer. Thereafter, at the insistence of the customer, the shipment was transferred back to AMC. (*See Exh. 7*)

29. On October 5, 2009, IFS USA arranged for ocean rates to ship wine from Cape Town to New York and suggested to “add export rates” for service contract purposes. IFS USA did not identify itself as an agent. (*See Exh.8*)

30. On or about October 22, 2009, International First Service USA, Inc. was identified as the consignee and the notify party on an import bill of lading, HLCUSCL090908385, for ocean transport of four (4) containers described as wine shipped from Chile to California aboard the M/V Valencia Express 922W. IFS USA did not identify itself as an agent. (*See Exh. 9*)

31. From October 22, 2009 through December 5, 2009, International First Service USA, Inc. was identified as the notify party on at least ten (10) separate bills of lading [HLCUBU3090905192, EGLV572900029888, CMDUFR1731960, CMDUFR1731945, EGLV572900030169, HLCUSCL991014185, HLCUSCL9A1014185, HLCUSCL9B1014185, HLCUSCL9C1014185, HLCUSCL9D1014185] for the ocean

import of wine to the United States. IFS USA did not identify itself as an agent. (*See Exh. 10*)

32. On October 28, 2009, AMC's customer, Buckeye Distribution advised that "We received a quote from Anita McNeil's new company that was considerably lower than your (AMC) bid so we are having them move this load..." (*See Exh. 11*)

33. On or about October 30, 2009, AMC (by representation) contacted the FMC to report the activity of Ms. McNeil and IFS USA and to inquire if Ms. McNeil or IFS USA were registered with or licensed by the FMC. AMC was advised that neither Ms. McNeil nor IFS USA appeared in the FMC system.

34. On or about October 30, 2009, AMC (by representation) contacted Carlos Rodriguez, Esq., attorney for IFS USA, whom advised that IFS USA was acting as an agent but Mr. Rodriguez could not recall who IFS USA's principal was. In fact, nowhere does IFS USA represent that it is an agent. Rather, IFS USA holds itself out to the public as a provider of transportation services and assumes the responsibility for the transportation.

35. On Nov. 6, 2009, the Commission served an *Order Granting Petition for Declaratory Order In the Matter of Unlicensed Persons Acting as Agents for Ocean Transportation Intermediaries* (FMC Docket No. 06-08) as a result of the U.S. Court of Appeals for the District of Columbia Circuit's decision in *Landstar Express America v. Federal Maritime Commission*, 569 F3d 493 (D.C. Cir. 2009). The Commission Ordered that "it is lawful for a licensed OTI to engage an unlicensed person to act as its agent to perform OTI services on behalf of the disclosed licensed OTI." However, in the

case presented, none of the Respondents are licensed by the FMC and none of the Respondents hold themselves out as agents or disclosed principals. As such, the Commission's Order and the decision in *Landstar* are not applicable to the activities of Respondents in this case.

36. On November 10, 2009, IFS USA arranged for export cargo from Wallingford, CT to the Greek side of Cyprus. IFS USA did not identify itself as an agent. (See *Exh. 12*)

37. On November 20, 2009, IFS USA negotiated rates for the transport of wine from JFK to Kearny, N.J. IFS USA did not identify itself as an agent. (See *Exh. 13*)

38. On December 1, 2009, Susan Tenorio, AMC Accounts Receivable, resigned to begin work with IFS USA.

39. On December 28, 2009, Ms. McNeil, as President on behalf of IFS USA issued a letter to Cosco Container Lines FRANCE certifying as follows:

“Although our company signed a contract as “automated NVOCC”, we request Cosco France to transmit the AMS Notice on our behalf, and to handle the filing for each carrier house B/L linked to Cosco master B/Ls issued from Le Harve France to USA ports of call in the course of the year 2010.

We hereby certify, in case of double filing or other mistakes with US customs, our company will fully indemnify Cosco against any customs fine that might arise further to that.”

IFS USA does not identify itself as an agent or identify a principal rather IFS USA in its own name agreed to indemnify Cosco. (See *Exh. 14 including original accompanying email (and free English translation of same) with attachment*)

40. On January 7, 2010, IFS USA issued a rate schedule for IFS USA ocean rates from La Harve to the United States. In doing so, IFS USA advised that it had negotiated service contracts with various shipping lines. IFS USA does not identify itself as an agent. It is important to note that the rate schedule IFS USA issued was identical to AMC's proprietary rate schedule form. In looking at the electronic properties of the IFS USA rate schedule, it is clear that the rate schedule was stolen from AMC since the properties show that the document was created by AMC on April 21, 2004 and that it was last saved on January 6, 2010 by IFS USA. *(See Exh. 15 including original accompanying email (and free English translation of same) with attachment and properties screen)* Further, upon information and belief, IFS USA provided a bond number to obtain the service contract with the ocean carriers. However, upon information and belief, IFS USA does not have a bond on file with the FMC.

41. IFS USA and GWL USA are incorporated in and established under the laws of the United States. Ms. McNeil is a resident of the United States. IFS USA, GWL USA and Ms. McNeil are providing OTI services in the United States. IFS USA, GWL USA and Ms. McNeil are all unregistered and unlicensed by the FMC.

42. IFS S.A. is an unlicensed OTI. Only licensed persons may provide OTI services in the United States on behalf of unlicensed OTI's. IFS USA, GWL USA and Ms. McNeil, located in the United States, cannot act as agent for IFS S.A. without a FMC license. IFS S.A. is liable for the actions of its agents.

43. IFS S.A., IFS USA, GWL USA and Ms. McNeil knowingly and willfully stole AMC's confidential, proprietary information, employees and customer lists in order to

gain an advantage and compete unfairly with AMC. IFS S.A., IFS USA, GWL USA and Ms. McNeil have acted in an unjust and unfair manner to provide OTI services at lower rates than would otherwise have been applicable.

44. IFS S.A., IFS USA, GWL USA and Ms. McNeil knowingly and willfully provided a bond number to ocean carriers in order to obtain lower service contract rates.

45. Respondent's actions have directly damaged AMC's business, its relationship with its customers and its reputation in the industry.

V. Injury to AMC

46. As a direct result of Ms. McNeil, IFS USA, GWL USA, AR-IFS and IFS S.A. violations of the Shipping Act, Complainants have suffered damages in the amount of \$93,449.54 through the fourth quarter of 2009 and will continue to suffer substantial economic damages estimated to be \$190,469.21 through the first half of 2010. Total actual damages claimed are \$283,918.75. In view of the foregoing, Complainants have had injury involving customer relations, its reputation in the industry and have been forced to take legal action, thus pursuant to the Shipping Act §11(g), Complainants seek twice the amount of the actual injury plus attorney fees, interests and costs.

VI. Violations of the Shipping Act

47. The actions of Ms. McNeil, IFS USA, GWL USA, AR-IFS and IFS S.A. constitute Violations of §8, §10 and §19 of the Shipping of 1984, as amended, and the Commission's Regulations at 46 C.F.R. §515 and §520 as follows:

- a. Respondents failed to keep open to the public in an automated tariff system, tariffs showing all rates, charges, classifications, rules, and practices between all points and ports on its route and on any through transportation route that has been established in violation of the Shipping Act §8(a);
- b. Respondents failed to file with the Commission the service contracts entered into with vessel operating common carriers in violation of the Shipping Act §8(c);
- c. Respondents engaged in a willful and deliberate fraudulent scheme to steal customers, employees and proprietary information from AMC in order to gain an unfair business advantage and/or in order to provide ocean transportation for property for less than the rates and/or charges that would otherwise have applied in violation of Section 10(a)(1) of the Shipping Act;
- d. Respondents have operated under agreements that were required to be filed under §5 that was not effective under §6 of the Shipping Act in violation of §10(a)(2);
- e. Respondents have worked together to allow parties to obtain transportation for property as less than the rates or charges that would have applied by unjust and unfair means in violation of Section §10(b)(1) of the Shipping Act;
- f. Respondents fraudulent actions and willful efforts constitutes failure to establish, observe and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, and delivering property in violation of Section §10(d)(1) of the Shipping Act,

- g. Respondents have knowingly and willfully accepted cargo for the account of an ocean transportation intermediary that does not have a tariff and a bond, insurance or other surety as required by §8 and §19 of the Shipping Act in violation of §10(b)(2)(11);
- h. Respondents have acted as ocean transportation intermediaries in the United States without a license in violation of §19 of the Shipping Act and 46 C.F.R. §515.3 and §520.

VII. Prayer for Relief

48. Wherefore, Complainants respectfully request from this Honorable Commission that respondents are required to answer the charges and that after due investigation and hearing, Respondents, each of them, be ordered as follow:

- i. Denied FMC OTI licenses based upon unsuitable character and violations of the Shipping Act as described herein;
- ii. Cease and Desist from the above described violations of the Shipping Act;
- iii. Pay the Complainants by way of reparations for the unlawful conduct described above a sum of no less than \$283,918.75, plus reasonable attorney's fees, interests and costs.
- iv. Pay any other damages that may be determined proper, and
- v. Take any other such action or provide any other such relief as their honorable Commission determines to be warranted under the circumstances.

VIII. Place of Hearing

47. The complainants desire the hearing to be held in New Jersey.

IX. Alternative Dispute Resolution

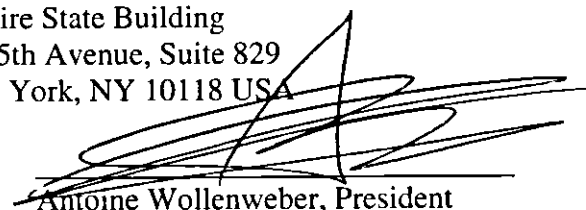
48. The FMC's informal dispute resolution procedures have not been used prior to the filing of this Complaint. Counsel for the Complainants has not had preliminary consultations with the Commissions' Dispute Resolution Specialist regarding the availability of alternative dispute resolution (ADR) under the FMC's ADR program. 46 CFR §502.62(E).

Dated: New York, New York
January 19, 2010

Respectfully submitted,

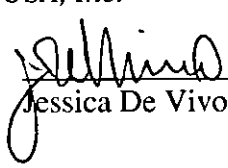
AMC USA Inc
Empire State Building
350 5th Avenue, Suite 829
New York, NY 10118 USA

By:


Antoine Wollenweber, President

CICHANOWICZ, CALLAN, KEANE,
VENGROW & TEXTOR, LLP
61 Broadway, Suite 3000
New York, New York 10006
Attorneys for Complainant
AMC USA, Inc.

By:


Jessica De Vivo, Esq.

VERIFICATION

I verify that I am the President of AMC USA Inc.; that I am authorized to make this verification on AMC USA Inc.'s behalf; that I have read the foregoing Verified Complaint and that the allegations in the Verified Complaint are true and correct to the best of my knowledge. I declare, under penalty of perjury, that the foregoing is true and correct.

Dated: January 19, 2010
New York, New York



Antoine Wollenweber
President AMC USA Inc.

State of New York:

ss:

County of New York:

Antoine Wollenweber being first duly sworn on oath deposes and says that he is the President of AMC USA Inc. and is the person who signed the foregoing verified complaint; that he has read the verified complaint and that the facts stated therein, upon information received from others, affiant believes to be true.

Subscribed and sworn to before me, a notary public in and for the State of New York, County of New York this 19th day January, 2010.


Notary Public

My Commission expires _____.

Shaunice McMullen
Notary Public, State of New York
No. 01MC6193634
Qualified in New York County
Commission Expires Sept. 22, 2012

CERTIFICATE OF SERVICE

The undersigned declares under penalty of perjury that the following is true and correct:

1. I am over the age of eighteen years and I am not a party to this action.
2. On January 20, 2009, I served a complete copy of AMC USA, Inc.'s Complaint to the following parties at the registered addresses:

Via Federal Express**Secretary**

Federal Maritime Commission
800 North Capital Street, NW
Washington, DC 20573

Via Personal Service**Anita McNeil**

110 Heritage Street
Robbinsville, NJ 08691

Via Personal Service**Business Filings Incorporated**

As Registered Agent for
International First Service, USA Inc.
108 west 13th Street
Wilmington, DE 19801
(800) 981-7183

Via Personal Service**Business Filings Incorporated**

As Registered Agent for
Global Wine Logistics, Inc.
108 west 13th Street
Wilmington, DE 19801
(800) 981-7183

Via Personal Service**Kelli Lynn C. Toney**

As Registered Agent for
International First Service S.A.
4000 Mitchellville Road, Suite 326B
Bowie, MD 20716,
Email: etmcorp@yahoo.com
Tel: (301) 262-0200.

Via Federal Express**Avalon Risk Management, Inc.**

Agent for Lincoln General Ins. Company
Agent for International First Service S.A
150 Northwest Point Blvd., 4th Floor
Elk Grove Village, IL 60007

Via Email**Ipsen Logistics FRANCE**

Attention: Jean-Jacques Agu
99 Avenue des Aygalades
Parc Lavoisier, Bât. B
13015 Marseille
Phone: +33 491 13 22 22
Fax: +33 491 56 29 23
E-Mail: jj.agu@ipsenlogistics.com

DATED: January 20, 2010
New York, New York


Mirna Corbin

Exhibit

1

From: Anita McNeil
Sent: Monday, August 17, 2009 4:08 PM
To: 'anitamcneil@optonline.net'
Subject: FW: 10+2 ISF Filling

Attachments: 6Digit Wine and Spirit Codes.pdf; ISF Agent Designation Letter.pdf; ISF POA.pdf; ISF questionnaire for US Importers 2008-01-22 v2.xls

AMC USA Inc.

Empire State Building, suite 829
New York, NY 10118
Tel (212) 736-1333 / Fax (212) 714-0686

"This message and any attachments (the "message") is intended solely for the addressees and is confidential. If you receive this message in error, please delete it and immediately notify the sender. Any use not in accord with its purpose, any dissemination or disclosure, either whole or partial, is prohibited except formal approval. The internet can not guarantee the integrity of this message, AMC (and its subsidiaries) shall (will) not therefore be liable for the message if modified."

From: Pascal Agrinier
Sent: Monday, August 17, 2009 10:31 AM
To: 'DIDIER SAYAH'
Cc: Magalie Robine; Anita McNeil
Subject: 10+2 ISF Filling

Dear Didier,

Please, find attached the Forms required by AMC to transmit 10+2 on your behalf.

Attached is a list of the HTS commodities, normally our customers are shipping one or two commodities in each container.

Please fax or email the forms back to us upon completion, we will then update your profile and begin to transmit on your behalf. If you have any questions, feel free to contact us.

Thank you,
Pascal



Pascal Agrinier
Sales Assistant
PH# 212-629-0359
FAX# 212-947-3255

This message and any attachments (the "message") is intended solely for the addressees and is confidential. If you receive this message in error, please delete it and immediately notify the sender. Any use not in accord with its purpose, any dissemination or disclosure, either whole or partial, is prohibited except formal approval. The internet can not guarantee the integrity of this message, AMC (and its subsidiaries) shall (will) not therefore be liable for the message if modified.

Exhibit

2

EXCLUSIVE ACCESS FOR EMPLOYEES

PORTUGUÉS | ENGLISH | ESPAÑOL



International First Service Freight Forwarders

HOME

ABOUT US

SERVICES

NEWS

TOOLS

CONTACT US



International First Service USA

International First Service was established in USA in 2009, counting with the support of IFS Argentina with more than 14 years of experience. In IFS USA our goal is to be close to our clients and be able to provide international shipping services and logistic solutions in an efficient and immediate way.

Our primary objective is to get known our clients and their requirements to provide customized responses to their needs of specific situations or special demands. We have developed a concept of integral service for the secure and on-time transport of all types of cargo combining skills and capability to provide excellence in service at the lower costs.

We operate world wide through a strong network of agents and we count with a staff integrated for highly qualified professionals and informatics solutions of first level, since in IFS we are aware that in today's competitive global environment, immediate access to information is absolutely critical.

Comprehensive range of national or international freight customs and logistic services: Worldwide freight forwarding by sea and air (Groupage, FCL, chartering, project cargo), Customs brokerage, insurance, warehousing, overland transport, ancillary services connected with international transport, customized solutions, and flexible rates.

International First Service invite you to discover new advantages of the International commerce along with us.

TRACKING

User: Pass:

Send

What's New

IFS USA, INC

197 Route 18 South, Suite 3000
East Brunswick, NJ 08816
Tel: +1 732 545 8444
Fax: +1 732 545 8440

Find Us



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DESIGN BY SIMP-LAB

Exhibit

3

Jessica De Vivo

From: josep maria puig [jmpuig@bestin-sc.com]
Sent: Wednesday, October 14, 2009 1:10 PM
To: Antoine Wollenweber
Cc: Edouard_Wollenweber; Jason Zotos
Subject: Anita McNeil/Santi Martinez

Dear Antoine,

As your agent in Spain, I have to report to you that one of our managers, Santi Martinez, left the company with no notice. Before leaving, he deleted many of the AMC's files from the company's computer as well as from the paper archives. Barnatrans is currently taking legal action against Santi Martinez.

The new company which Santi Martinez became a part of is called MCTrinter. As far as we know, MCTrinter is now the Spanish agent of IFS USA which would be the company of Anita McNeil. Therefore, it can be assumed that Santi Martinez left Barnatrans knowing very well that he would be working with Anita and purposely deleted AMC's files in order to obtain a competitive advantage.

I remain at your disposal should you need more detailed information on this matter.

Best personal regards,

Josep M. Puig
CEO
Barnatrans
Bestin Supply Chain

_____ Información de ESET NOD32 Antivirus, versión de la base de firmas de virus 4507
(20091014) _____

ESET NOD32 Antivirus ha comprobado este mensaje.

<http://www.eset.com>

Exhibit

4

Jessica De Vivo

From: Herb Umstead [hu@fastwaytrucking.com]
Sent: Friday, September 18, 2009 10:18 AM
To: 'Anita Mcneil'; Magalie Robine
Subject: RE: Quotation

Elizabeth NJ to GA / FL \$2100
 Tracy CA \$3100
 Fullerton CA \$3000
 Mira Loma CA \$3000
 Tollezson AZ \$2800
 Salt Lake City UT \$2750
 Dallas TX \$1750
 Sumner WA \$3950

These are the rates for now 50 degrees ?
 No service Mexico or local NJ

From: Anita Mcneil [mailto:anita.mcneil@us-ifs.com]
Sent: Friday, September 18, 2009 9:24 AM
To: Herb Umstead
Subject: RE: Quotation

Yes absolutely !

From: Herb Umstead [mailto:hu@fastwaytrucking.com]
Sent: Friday, September 18, 2009 6:20 AM
To: 'Anita Mcneil'
Subject: RE: Quotation

Everything is coming out of Elizabeth NJ to FL/ CA/ UT ect

From: Anita Mcneil [mailto:anita.mcneil@us-ifs.com]
Sent: Friday, September 18, 2009 9:14 AM
To: Herb Umstead
Subject: FW: Quotation

Good morning Herb,

So Ok shipments will be more frequent. Please find below the request:

"Dear Anita,

Please provide quotation for Full Truck Reefer(chocolate truffles) for the following:

Pick up : East Coast Warehouse, Elizabeth, NJ 07201

Destination:

1/12/2010

Costco Southeast:

College Park, GA 30349
West Palm Beach, FL 33407

Costco Northwest:

Monroe, NJ 08831

Costco Bay Area:

Tracy, CA 95377

Costco San Diego:

Salt Lake City, UT 84104
Tollezon, AZ 85553

Costco LA:

Fullerton CA 92832
Mira Loma, CA 91752

Costco Midwest:

Morris, IL 60450

Costco Northwest:

Salt Lake City, UT 84104
Sumner, WA 98390

Costco Texas:

Dallas, TX 75236

Costco Mexico:

Hidalgo 42850

Costco Western Canada:

Airdrie, AB T4BA1
Langley, BC V1M3Y6

Costco Eastern Canada:

Brampton, ON L6S1J7
St Bruno, QC J3V6H1

1/12/2010

And of course I need them ASAP.

Please specify for each state the weight limits per truck load.

**Thank you,
Anita**

Anita Mc Neil
President
International First Service USA, Inc.
197 Route 18 South, Suite 3000
East Brunswick, NJ 08816
Tel 732 545 8444
Direct 732 214 2624
Cell 646 201 3853
Fax 732 545 8440
visit us at www.ar-ifs.com
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1/12/2010

Exhibit

5

Jessica De Vivo

Subject: FW: IFS USA Rate request from Cape Town to New York

From: A REPICE USNYC IMPORT EUROPE WEST MED S AFRICA & AUS TRADE MGR

Sent: Monday, September 28, 2009 4:08 PM

To: Magalie Robine

Cc: Z VAN ZYL ZADUR IMP / EXP TRADE MANAGER (USA)

Subject: RE: IFS USA Rate request from Cape Town to New York

Magalie

Its the best I can do currently

Kind Regards,

Agatacristi Repice

Import Trade Manager

North Europe, West Med, South Africa and Australia Services

Telephone 212 896 9014

Fax 212 827 1650

From: Magalie Robine [mailto:magalie.robine@us-ifs.com]

Sent: Monday, September 28, 2009 3:35 PM

To: A REPICE USNYC IMPORT EUROPE WEST MED S AFRICA & AUS TRADE MGR

Cc: Z VAN ZYL ZADUR IMP / EXP TRADE MANAGER (USA)

Subject: RE: IFS USA Rate request from Cape Town to New York

Agatacristi,

The below rates are pretty high.

This is an existing traffic and it is right now handled by Safmarine.

Our customer is being offer the following rate:

40' Dry: \$2200 + BAF \$390 + THC \$600 + ISPS \$6 + CUC \$6

This is the sale rate that the customer is paying directly so basically I am looking for a lower rate than what he is being offered.

Any room for you to review your rate?

Thanks

Magalie

From: A REPICE USNYC IMPORT EUROPE WEST MED S AFRICA & AUS TRADE MGR [mailto:AREPICE@msc.us]

Sent: Monday, September 28, 2009 3:27 PM

To: Magalie Robine

Cc: Z VAN ZYL ZADUR IMP / EXP TRADE MANAGER (USA)

Subject: RE: IFS USA Rate request from Cape Town to New York

12/21/2009

Quote # : MSC0015698

Account : International First Service USA, Inc.

Dear Magalie,

Please find below MSC's offer based upon your rate inquiry. Should this rate quote lead to a booking we ask that you reference MSC0015698 so that we can assure shipment will be rated accordingly.

Quote Details :

Created By: AgataCristi Repice

Rate Validity: 10/27/2009

Commodity: Wine of fresh grapes, incl. fortified wines; grape must, partly fermented and of an actual alcoholic strength of > 0,5% vol or grape must with added alcohol of an actual alcoholic strength of > 0,5% vol

Volume/MQC/Teu's: 50

Equipment:

Hazardous - No / Overweight - / Shipper Owned -

Notes: SOUTH AFRICAN LANDSIDE CHARGES AS PER TARIFF AT TIME OF SAILING FOR ACCOUNT OF SHIPPER

Origin:	
Port of Load:	Cape Town
Origin Transport Mode:	
Port of Delivery:	New York
Final Destination:	
Destination Transport Mode:	
Remarks:	

20' Dry Van (8/6)

Charge Name	Amount	Currency	Remarks
Ocean Freight	2,400.00	USD	
ISPS Import	8.00	USD	
Security Manifest Documentation FEE	25.00	USD	
Bunker Contribution	330.00	USD	
Terminal Handling Charge	390.00	USD	
EQUIPMENT IMBALANCE SURCHARGE	150.00	USD	
ISPS Export	6.00	USD	
Chassis Usage Charge	60.00	USD	
Bill of Lading / Documentation	160.00	ZAR	

40' Dry Van

Charge Name	Amount	Currency	Remarks
Ocean Freight	3,800.00	USD	
ISPS Import	8.00	USD	
Security Manifest Documentation FEE	25.00	USD	
Bunker Contribution	660.00	USD	
Terminal Handling Charge	390.00	USD	

12/21/2009

EQUIPMENT IMBALANCE SURCHARGE	150.00	USD	
ISPS Export	6.00	USD	
Chassis Usage Charge	60.00	USD	
Bill of Lading / Documentation	160.00	ZAR	

We appreciate your interest in MSC and look forward to receiving your feedback.

Kind Regards,
 Agatacristi Repice
 Import Trade Manager
 North Europe, West Med, South Africa and Australia Services
 Telephone 212 896 9014
 Fax 212 827 1650

Unless otherwise noted, all ocean freight quotations are:

- valid for 30 days from the date of original quotation,
- subject to equipment availability,
- subject to any and all tariff additional valid at time of shipment.

Inland freight quotations are:

- subject to third party increases valid at time of shipment,
- subject to any fuel surcharges valid at time of shipment,
- subject to weight limitations and weight distribution requirements in accordance with the local and national rules and regulations of the country(ies) of transit,
- subject to availability of inland carrier at time of booking.

Loading, lashing, securing, blocking and bracing of cargo is for shipper's account.

Carrier reserves the right to stow cargo in the best interest of the Vessel and in compliance with local, national and international rules, regulations and conventions.

On deck shipments at shipper's risk.

Dangerous cargo, as defined by 49 CFR or the IMDG Code, is subject to the line's approval at time of booking

From: R MILONE USNYC IMPORT SALES VP

Sent: Monday, September 28, 2009 2:42 PM

To: Magalie Robine; A REPICE USNYC IMPORT EUROPE WEST MED S AFRICA & AUS TRADE MGR

Subject: RE: IFS USA Rate request from Cape Town to New York

From: Magalie Robine [mailto:magalie.robine@us-ifs.com]

Sent: Monday, September 28, 2009 1:48 PM

To: R MILONE USNYC IMPORT SALES VP

Subject: IFS USA Rate request from Cape Town to New York

Ron,

Can you please quote:

12/21/2009

From Cape Town to New York
20' + 40' Dry
Commodity is wine

We are looking at contract rates - 50TEUs

Thanks
Magalie

Magalie ROBINE
International First Service USA, Inc.
197 Route 18 South, Suite 3000
East Brunswick, NJ 08816
Tel 732 545 8444
Direct 732 214 2626
Cell 347 415 3663
Fax 732 545 8440
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Exhibit

6

Jessica De Vivo

From: Magalie Robine [mailto:magalie.robine@us-ifs.com]
Sent: Wednesday, September 30, 2009 10:09 AM
To: NAMSALWIS
Subject: RE: IFS USA Rate request from Wallingford, CT to Jordan

Josefina

Can you please also quote:

From Wallingford, CT to Aqaba, Jordan
20' and 40'HC
Commodity is spas

Please also confirm routing and transit time

Thanks!
Magalie

-----Original Message-----

From: Magalie Robine [mailto:magalie.robine@us-ifs.com]
Sent: Tuesday, September 29, 2009 12:18 PM
To: 'NAMSALWIS sent by Berardi, Josefina'
Subject: IFS USA Rate request from Wallingford, CT to Slovakia
Importance: High

Josefina

Can you please quote:

From Wallingford, CT to Door Kapusany 08212, Slovakia 20' and 40'HC Commodity is spas

Please also confirm routing and transit times

Thanks!
Magalie

Exhibit

7

Jessica De Vivo

From: Jim Aufiero [jimaufiero@rubywines.com]
Sent: Thursday, October 08, 2009 2:45 PM
To: Jason Zotos
Subject: FW: Booking Confirmation PO# 52950

-----Original Message-----

From: Jim Aufiero [mailto:jimaufiero@rubywines.com]
Sent: Thursday, October 08, 2009 9:47 AM
To: Anita Mcneil
Cc: 'Emelyn Marquez'
Subject: RE: Booking Confirmation PO# 52950

Anita,

This fiasco has gone on for too long, in addition, this mess compromises my relationship with AMC.

As I mentioned in our conversation yesterday, it is still my request that this order be shipped under the direction of AMC, please do whatever it takes to make sure they have all necessary documents to fulfill my original wishes.

Thank you
Jim

-----Original Message-----

From: Anita Mcneil [mailto:anita.mcneil@us-ifs.com]
Sent: Thursday, October 08, 2009 9:31 AM
To: 'Jim Aufiero'
Cc: 'Emelyn Marquez'
Subject: RE: Booking Confirmation PO# 52950

Good morning Jim,

Following our conversation yesterday, I personally do not want you caught up between AMC and IFS, and the negative approach that has been taken.

I apologize again for my team taking action at the bequest of Santa Rita and booking the container because they could not get through to the other agent.

For this container PO# 52950 - we cannot cancel the booking as your container is already loaded on the vessel. At least as you wished this will ship on time and will be here on October 21st.

I want to compromise because I do want to keep my chances at soliciting your business directly and honestly.

I have instructed our team to send the Master Bill of Lading consigned to AMC, and they can take charge of the box from this point on. They will bill you whatever you had in pre-agreement with them in quotes, and handle the box, and you do not have a container delayed further.

On another matter, I attached for your viewing a message your shipper sent to Palm Bay - Lisa Wu asking to switch from AMC to another forwarder.

I look forward to your comments and acknowledgment of this proposal.

Thank you & Best Regards,
Anita

Anita Mc Neil

President

International First Service USA, Inc.

197 Route 18 South, Suite 3000

East Brunswick, NJ 08816

Tel 732 545 8444

Direct 732 214 2624

Cell 646 201 3853

Fax 732 545 8440

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From: Jim Aufiero [mailto:jimaufiero@rubywines.com]

Sent: Tuesday, October 06, 2009 5:03 PM

To: Emelyn Marquez

Cc: 'Anita Mcneil'

Subject: RE: Booking Confirmation PO# 52950

thank you..

Broker is Jim Lawless at CH Powell, his contact info is attached

Please let him know that we will terminate service in NY, and will have him ask M&G Logistics to p/u in NY and deliver to us.

Thanks
Jim

-----Original Message-----

From: Emelyn Marquez [mailto:emelyn.marquez@us-ifs.com]

Sent: Tuesday, October 06, 2009 4:59 PM

To: jimaufiero@rubywines.com

Cc: 'Anita Mcneil'

Subject: Booking Confirmation PO# 52950

Dear Jim,

Please see attached booking confirmation for this shipment ex Vina Santa Rita in Chile.

This container is booked from San Antonio to NY Port only.

Please email me your Broker's information so we may add them in the BL as the notify party.

Let me know should you have any questions or concerns.

Thanks and Best Regards,

Emelyn Marquez
International First Service USA, Inc.
197 Route 18 South, STE 3000
East Brunswick, NJ 08816
Tel: 732-545-8444 Direct: 732-214-2627
Fax: 732-545-8440
emelyn.marquez@us-ifs.com

Exhibit

8

Jessica De Vivo

From: Anita Mcneil [mailto:anita.mcneil@us-ifs.com]
Sent: Monday, October 05, 2009 3:49 PM
To: NAMSALWIS
Cc: 'Magalie Robine'
Subject: RE: IFS USA Rate request from Cape Town to New York

Hello Josefina,

These rates that we are asking are coming from current customers. Yes, we would sign a service contract where we could hopefully add our export rates and start somewhere.

Allow me to give you a rate benchmark that we were provided by a customer:
Ex cape Town to NY - Freight \$2200/40' + \$351 BAF + THC + CUC + Security.

Same for West Coast ports if you offer them from Durban and Cape Town.

Thank you,
Anita

Anita Mc Neil
President
International First Service USA, Inc.
197 Route 18 South, Suite 3000
East Brunswick, NJ 08816
Tel 732 545 8444
Direct 732 214 2624
Cell 646 201 3853
Fax 732 545 8440
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From: Magalie Robine [mailto:magalie.robine@us-ifs.com]
Sent: Monday, September 28, 2009 12:02 PM
To: 'NAMSALWIS sent by Berardi, Josefina'
Subject: RE: IFS USA Rate request from Cape Town to New York [Our Ref:JBE54037]

Josefina,

We are looking at contract rate - would 50TEUs work?

Thanks
Magalie

From: NAMSALWIS sent by Berardi, Josefina [mailto:NAMSALWIS@maersk.com]
Sent: Monday, September 28, 2009 11:54 AM

1/12/2010

To: Magalie Robine

Subject: RE: IFS USA Rate request from Cape Town to New York [Our Ref:JBE54037]

Magalie,

Is this moving under a contract?

Regards,

Josefina Berardi

Wines & Spirits

Maersk Line

Giralda Farms, Madison Avenue, PO Box 880

Madison, New Jersey 07940-0880

tel 1-973-514-2045

fax 1-973-264-4026

email namsalwis@maersk.com

web www.maerskline.com

This e-mail is intended exclusively for the addressee. If you are not the addressee you must not read, copy, use or disclose the e-mail nor the content; please notify us immediately [by clicking 'Reply'] and delete this e-mail.

From: Magalie Robine [mailto:magalie.robine@us-ifs.com]

Sent: Monday, September 28, 2009 11:05 AM

To: NAMSALWIS

Subject: IFS USA Rate request from Cape Town to New York

Josefina

Can you please quote:

From Cape Town to New York

20' + 40' Dry

Commodity is wine

Thanks

Magalie

Magalie ROBINE

International First Service USA, Inc.

197 Route 18 South, Suite 3000

East Brunswick, NJ 08816

Tel 732 545 8444

Direct 732 214 2626

Cell 347 415 3663

1/12/2010

Fax 732 545 8440

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Exhibit

9

IMPORT BILL OF LADING DETAIL

SHIPPER	CONSIGNEE
INTERNATIONAL FIRST SERVICE DE CHIL E S.A. LA CONCEPCION 322 OF/901 CTO:MAGALY SANTIS, TEL:56-2-6500230	INTERNATIONAL FIRST SERVICE USA, IN C. 197 ROUTE 18 SOUTH, STE 3000 EAST BRUNSWICK, NJ 08816 USA

NOTIFY PARTY	ALSO NOTIFY
INTERNATIONAL FIRST SERVICE USA, IN C. 197 ROUTE 18 SOUTH, STE 3000 EAST BRUNSWICK, NJ 08816 USA	ORDER

PACKAGING INFORMATION			
Weight:	69,674.30 KG	Measure:	0.00
Quantity:	4,200.00 PCS	TEUs:	4.00

SHIPMENT DETAIL			
Carrier:	HAPAG LLOYD	Country of Origin:	CHILE
SCAC:	***	Coastal Region:	West Coast
Vessel:	VALENCIA EXPRESS	Port of Arrival:	2811 OAKLAND
Voyage:	922W	Port of Departure:	20120 MANZANILLO
Bill of Lading Number:	HLCUSCL090908385	U.S. Destination:	OAKLAND
Pre Carrier:	VALPARAISO, CHILE (CL) (SAMR)	Foreign Destination:	
IMO Number:	***	Mode of Transport:	10
Inbond Code:		Arrival Date:	10/22/2009
Estimated Value:	***		

AMS COMMODITIES		
Container	Qty	Description
HLXU2068980	1050	WINE 1050 CASES 12X750 ML. MORANDE PIONERO SAUVIGNON BLANC 2009. REF.FEM-3723 PO.VM09/33
GLDU0232922	1050	WINE 1050 CASES 48/187,5 ML. MANCURA ETNIA CABERNET SAUVIGNON 2009. REF.FEF-3722 PO:VM09/34
GATU1333047	1050	WINE 400 CASES 48/187,5 ML VISTAMAR CABERNET SAUVIGNON 2009 650 CASES 48/187,5 ML. VISTAMAR SAUVIGNON BLANC 2009 REF.FEV-3721 PO.VM09/35
HLXU3444607	1050	WINE 900 CASES 12X750 ML. MORANDE PIONERO PINOT NOIR 2008 150 CASES 12X750 ML. MORANDE PIONERO PINOT NOIR 2009 REF.FEM-3720 PO. VM09/36

IMPORT BILL OF LADING DETAIL

MARKS & NUMBERS	
Container	Marks & Numbers
GATU1333047	- N/M
GLDU0232922	-N/M
HLXU2068980	-N/M
HLXU3444607	-N/M

PIERS Commodity Description				
Qty	Units	PIERS Commodity Description	HS Code	JOC Code
***	***	***	220429	***
			220429	
			220429	
			220429	

Exhibit

10

IMPORT BILL OF LADING DETAIL

SHIPPER	CONSIGNEE
BENEGAS SA ARAOZ 1600 - MAYOR DUMMOND (5507) LUJAN DE CUYO - MENDOZA ARGENTINA, TEL/FAX: 542614963078	STANZA 82469 GRANT DRIVE INDIO, CA CALIFORNIA 92201 - USA TEL: 7607751316

NOTIFY PARTY	ALSO NOTIFY
INTERNATIONAL FIRST SERVICE USA INC. 197 ROUTE 18 SOUTH, SUITE 3000 EAST BRUNSWICK, NJ 08816 USA, TEL: 7325458444	TLR 25 KEARNY ST304 SAN FRANCISCO, CA 91108-5515 (415) 398-4380 USA, ATTN: HOWARD

PACKAGING INFORMATION			
Weight:	23,414.95 KG	Measure:	0.00
Quantity:	1,271.00 PCS	TEUs:	2.00

SHIPMENT DETAIL			
Carrier:	HAPAG LLOYD	Country of Origin:	CHILE
SCAC:	***	Coastal Region:	West Coast
Vessel:	VALENCIA EXPRESS	Port of Arrival:	2811 OAKLAND
Voyage:	922W	Port of Departure:	20120 MANZANILLO
Bill of Lading Number:	HLCUBU3090905192	U.S. Destination:	OAKLAND
Pre Carrier:	VALPARAISO, CHILE (CL) (SAMR)	Foreign Destination:	
IMO Number:	***	Mode of Transport:	10
Inbond Code:		Arrival Date:	10/22/2009
Estimated Value:	***		

AMS COMMODITIES		
Container	Qty	Description
HLXU4087227	1271	WINE 392 CASES OF FINE WINE JUAN BENEGAS 2007 12 X 750 ML 112 CASES OF FINE EINE DON TIBURCIO 2006 12 X 750 ML 112 CASES OF FINE WINE LUNA BENEGAS 2007 12 X 750 ML 224 CASES OF FINE WINE BENEGAS MALBEC 2007 12 X 750 ML 168 CASES OF FINE WINE BENEGAS SYRAH 2007 12 X 750 ML 112 CASES OF FINE WINE BENEGAS FINCA LIBERTAD 2006 12 X 750 ML 70 CASES OF FINE WINE BENEGAS SANGIOVESE 2007 12 X 750 ML 28 CASES OF FINE WINE BENEGAS LYNCH CABERNET FRANC 2005 6 X 750 ML 28 CASES OF FINE WINE BENEGAS LYNCH MERITAGE 2005 6 X 750 ML LIQUID WEIGHT: 10962 NET WEIGHT: 21334,74 KGS GROSS WEIGHT: 22292,76 KGS PROFORMA INVOICE: 395 SAMPLES WITHOUT COMMERCIAL VALUE 12 CASES OF FINE WINE CLARA BENEGAS 2008 12 X 750 ML 13 CASES OF FINE WINE CARMELA BENEGAS 2008 12 X 750 ML LIQUID WEIGHT 225 NET WEIGHT: 42,5 KGS GROSS WEIGHT: 442,25 KGS PROFORMA INVOICE 395/1 FDA:17157235558

IMPORT BILL OF LADING DETAIL

MARKS & NUMBERS				
Container	Marks & Numbers			
HLXU4087227	- PE: 09038EC03006883 D			

PIERS Commodity Description				
Qty	Units	PIERS Commodity Description	HS Code	JOC Code
***	***	***	220429	***

IMPORT BILL OF LADING DETAIL

SHIPPER	CONSIGNEE
BODEGAS LAN S.A. PARAJE DE BUICIO, S/N 26360 FUENMAYOR PH: 941 450 950 FAX: 941 450 567, SPAIN	MONSIEUR TOUTON SELECTION, LTS 129 WEST 27TH STREET, SUITE 9B 10001 NEW YORK PH: (212)255-0786-FAX:(212)255-2628, NY

NOTIFY PARTY	ALSO NOTIFY
INTERNATIONAL FIRST SERVICE USA INC. 197 ROUTE 18 SOUTH,SUITE 3000 8816 EAST BRUNSWICK, NJH PH:+17322142624 -, ANITA.MCNEIL@US-IFS.COM	ORDER

PACKAGING INFORMATION			
Weight:	22,060.75 KG	Measure:	55.00 CM
Quantity:	1,260.00 BOXES	TEUs:	2.00

SHIPMENT DETAIL			
Carrier:	EVERGREEN LINE	Country of Origin:	SPAIN
SCAC:	***	Coastal Region:	East Coast
Vessel:	ITAL ORIENTE	Port of Arrival:	1001 NEW YORK
Voyage:	0008W	Port of Departure:	42157 ROTTERDAM
Bill of Lading Number:	EGLV572900029888	U.S. Destination:	NEW YORK
Pre Carrier:	BILBAO, SPAIN (ES) (EURO)	Foreign Destination:	
IMO Number:	***	Mode of Transport:	10
Inbond Code:		Arrival Date:	11/23/2009
Estimated Value:	***		

AMS COMMODITIES		
Container	Qty	Description
GVCU4083464	1260	WINE 1260 BOXES WINE HTS:220421 FREIGHT PREPAID SHIPPED ON BOARD

MARKS & NUMBERS	
Container	Marks & Numbers
GVCU4083464	- BODEGAS LAN - BODEGAS LAN - THE SAME - THE SAME

PIERS Commodity Description				
Qty	Units	PIERS Commodity Description	HS Code	JOC Code
***	***	***	220429	***

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IMPORT BILL OF LADING DETAIL

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IMPORT BILL OF LADING DETAIL

SHIPPER	CONSIGNEE
M.C TRINTER, S.A. CTRA DEL MIG, 94 PH:+ 34934741500 08907 L'HOSPITALET DE LLOBREGAT, SPAIN	USA WINE IMPORT 285 WEST BROADWAY PH:12129417133 FAX:12129417133, 10013 NEW YORK, NY

NOTIFY PARTY	ALSO NOTIFY
INTERNATIONAL FIRST SERVICE USA INC 197 ROUTE 18 SOUTH STE 3000 PH:732-545-8444 ANITA MCNEIL ANITA.MCNEIL US-IFS.COM, EMELYN.MARQUEZ US-IFS.COM	ORDER

PACKAGING INFORMATION			
Weight:	27,664.49 KG	Measure:	50.00 CM
Quantity:	1,271.00 PCS	TEUs:	2.00

SHIPMENT DETAIL			
Carrier:	CMA-CGM	Country of Origin:	FRANCE
SCAC:	***	Coastal Region:	East Coast
Vessel:	MAERSK DARTMOUTH	Port of Arrival:	1001 NEW YORK
Voyage:	LB383	Port of Departure:	42737 LE HAVRE
Bill of Lading Number:	CMDUFR1731960	U.S. Destination:	NEW YORK
Pre Carrier:	LE HAVRE, FRANCE (FR) (EURO)	Foreign Destination:	
IMO Number:	***	Mode of Transport:	10
Inbond Code:		Arrival Date:	11/25/2009
Estimated Value:	***		

AMS COMMODITIES		
Container	Qty	Description
CGMU7500973	1271	TOTAL 1271 BOXES WINE FREIGHT + DTHC + CUC + ISPS PAYABLE AT MARSEI SEA WAYBILL NO ORIGINAL ISSUED 102 BOXES WINE HTS: 220421 1579 KGS 42 BOXES WINE HTS: 220421 706 KGS 30 BOXES WINE HTS: 220421 648 KGS 71 BOXES WINE HTS: 220421 1278KGS 65 BOXES WINE HTS: 220421 1300 KGS 25 BOXES WINE HTS: 220421 540 KGS 84 BOXES WINE HTS: 220421 1500 KGS 50 BOXES WINE HTS: 220421 800 KGS 100 BOXES WINE HTS: 220421 1500 KGS 68 BOXES WINE HTS: 220421 1200 KGS 93 BOXES WINE HTS: 220421 1700 KGS 150 BOXES WINE HTS: 220421 2400 KGS 50 BOXES WINE HTS: 220421 780 KGS 30 BOXES WINE HTS: 220421 540 KGS 111 BOXES WINE HTS: 220421 2200 KGS 24 BOXES WINE HTS: 220421 490 KGS 176 BOXES WINE HTS: 220421 3000 KGS CARGO IS STOWED IN A REFRIGERATED CONTAINER S AT THE SHIPPER'S REQUESTED CARRYING TEMPERATU OF 13 DEGREES CELSIUS

IMPORT BILL OF LADING DETAIL

MARKS & NUMBERS				
Container	Marks & Numbers			
CGMU7500973	- CAVE DE LUGNY - FOURNIER PERE ET - FILS - CHAMPAGNE LOMBARD - EDMOND MONNOT - VIGNOBLES FALMET - BENOIT LAHAYE - CHATEAU DE PIZAY - CHATEAU LES - AMOUREUSES - DOMAINE D'AUGERON - DOMAINE SYLVAIN - BAILLY - MICHEL VOARICK - CLOS SIGUIER - DOMAINE DE LA - SENECHALIERE - PATRICK MIOLANE - CHAMPAGNE PIERRE - BRIGANDAT - CHAMPAGNE JACQUES - LASSAIGNE - FALMET YVES			

PIERS Commodity Description				
Qty	Units	PIERS Commodity Description	HS Code	JOC Code
***	***	***	220429	***

IMPORT BILL OF LADING DETAIL

SHIPPER	CONSIGNEE
MC TRINTER SA CRTA DEL MIG, 94 08907 L'HOSPITALET DE LLOBREGAT SPAIN, PH: +34934741500	USA WINE IMPORT 285 WEST BROADWAY 10013 NEW YORK, NY USA, TEL: 12129417133 - FAX: 12129417133

NOTIFY PARTY	ALSO NOTIFY
INTERNATIONAL FIRST SERVICE USA INC 197 ROUTE 18 SOUTH, STE 3000 EAST BRUNSWICK, NJ 08816 USA PHONE: 732-545-8444 - ANITA MCNEIL, ANITA.MCNEIL US-IFS.	ORDER

PACKAGING INFORMATION			
Weight:	50,971.03 KG	Measure:	120.00 CM
Quantity:	2,429.00 PCS	TEUs:	4.00

SHIPMENT DETAIL			
Carrier:	CMA-CGM	Country of Origin:	FRANCE
SCAC:	***	Coastal Region:	East Coast
Vessel:	HS CHALLENGER	Port of Arrival:	1001 NEW YORK
Voyage:	GX594	Port of Departure:	42776 FOS
Bill of Lading Number:	CMDUFR1731945	U.S. Destination:	NEW YORK
Pre Carrier:	FOS SUR MER, FRANCE (FR) (EURO)	Foreign Destination:	
IMO Number:	***	Mode of Transport:	10
Inbond Code:		Arrival Date:	11/29/2009
Estimated Value:	***		

AMS COMMODITIES		
Container	Qty	Description
CGMU4935268	1223	1223 BOXES AS PER DETAILS: 71 BOXES WINE 112 BOXES WINE 73 BOXES WINE 333 BOXES WINE 60 BOXES WINE 50 BOXES WINE 24 BOXES WINE 46 BOXES WINE 120 BOXES WINE 3 BOXES WINE 188 BOXES WINE 41 BOXES WINE 45 BOXES WINE 77 BOXES WINE
CRLU6222520	1206	TOTAL 2429 BOXES WINE CARGO IS STOWED IN A REFRIGERATED CONTAINER S AT THE SHIPPER'S REQUESTED CARRYING TEMPERATU OF 13 DEGREES CELSIUS FREIGHT + DTHC + CUC PAYABLE AT MARSEILLE SEA WAYBILL NO ORIGINAL ISSUED 1206 BOXES AS PER DETAILS : 30 BOXES WINE 111 BOXES WINE 75 BOXES WINE 450 BOXES WINE 43 BOXES WINE 40 BOXES WINE 150 BOXES WINE 11 BOXES WINE 194 BOXES WINE 102 BOXES WINE

IMPORT BILL OF LADING DETAIL

MARKS & NUMBERS				
Container	Marks & Numbers			
CGMU4935268	- NO MARKS			
CRLU6222520	-NO MARKS			

PIERS Commodity Description				
Qty	Units	PIERS Commodity Description	HS Code	JOC Code
***	***	***	220429	***

IMPORT BILL OF LADING DETAIL

SHIPPER	CONSIGNEE
BODEGAS LAN S.A. PARAJE DE BUICIO, S/N 26360 FUENMAYOR PH: 941 450 950 FAX: 941 450 567, SPAIN	MONSIEUR TOUTON SELECTION, LTS 129 WEST 27TH STREET, SUITE 9B 10001 NEW YORK PH: (212)255-0786-FAX:(212)255-2628, NY

NOTIFY PARTY	ALSO NOTIFY
INTERNATIONAL FIRST SERVICE USA INC 197 ROUTE 18 SOUTH, SUITE 3000 8816 EAST BRUNSWICK, NJH PH:+17322142624 -, ANITA.MCNEIL@US-IFS.COM	ORDER

PACKAGING INFORMATION			
Weight:	22,060.75 KG	Measure:	55.00 CM
Quantity:	1,260.00 BOXES	TEUs:	2.00

SHIPMENT DETAIL			
Carrier:	EVERGREEN LINE	Country of Origin:	SPAIN
SCAC:	***	Coastal Region:	East Coast
Vessel:	COSCO MELBOURNE	Port of Arrival:	1001 NEW YORK
Voyage:	050W	Port of Departure:	42157 ROTTERDAM
Bill of Lading Number:	EGLV572900030169	U.S. Destination:	NEW YORK
Pre Carrier:	BILBAO, SPAIN (ES) (EURO)	Foreign Destination:	
IMO Number:	***	Mode of Transport:	10
Inbond Code:		Arrival Date:	12/01/2009
Estimated Value:	***		

AMS COMMODITIES		
Container	Qty	Description
EISU1762891	1260	WINE 1260 BOXES WINE HTS:220421 FREIGHT PREPAID SHIPPED ON BOARD

MARKS & NUMBERS	
Container	Marks & Numbers
EISU1762891	- BODEGAS LAN - BODEGAS LAN - THE SAME - THE SAME

PIERS Commodity Description				
Qty	Units	PIERS Commodity Description	HS Code	JOC Code
***	***	***	220429	***

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IMPORT BILL OF LADING DETAIL

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IMPORT BILL OF LADING DETAIL

SHIPPER	CONSIGNEE
MAINQUE SA VIDELA ARANDA 3512 CRUZ DE PIEDRA MAIPU - MENDOZA - ARGENTINA, TEL 261-154176069	COPA FINA WINE IMPORTS, LLC 2269 CHESTNUT STRET 166 SAN FRANCISCO CALIFORNIA ZIP CODE 94123

NOTIFY PARTY	ALSO NOTIFY
INTERNATIONAL FIRST SERVICE USA, INC. 197 ROUTE 18 SOUTH, SUITE 3000 EAST BRUNSWICK, TEL: 732 545 8444 FAX: 732 545 8440	ORDER

PACKAGING INFORMATION			
Weight:	2,700.00 KG	Measure:	0.00
Quantity:	150.00 PCS	TEUs:	0.40

SHIPMENT DETAIL			
Carrier:	HAPAG-LLOYD A G	Country of Origin:	MEXICO
SCAC:	***	Coastal Region:	
Vessel:	LISBON EXPRESS	Port of Arrival:	2811 OAKLAND
Voyage:	926W	Port of Departure:	20120 MANZANILLO
Bill of Lading Number:	HLCUSCL991014185	U.S. Destination:	
Pre Carrier:	VALPARAISO, CHILE (CL) (SAMR)	Foreign Destination:	
IMO Number:	***	Mode of Transport:	10
Inbond Code:		Arrival Date:	12/05/2009
Estimated Value:	***		

AMS COMMODITIES		
Container	Qty	Description
BHCU3113874	150	WINE WINE: 80 CASES OF RED WINE MELODIA MALBEC 2005 12X750 ML 40 CASES OF RED WINE MELODIA SYRAH 2006 12X750 ML 30 CASES OF RED WINE MELODIA MERLOT 2006 12X750ML TOTAL CASES 150 NET WEIGHT 1350,00 KGS GROSS WEIGHT 2700,00 KGS INVOICE:0001-00000055 FDA: 10539726384

IMPORT BILL OF LADING DETAIL

MARKS & NUMBERS				
Container	Marks & Numbers			
BHCU3113874	- N/M			

PIERS Commodity Description				
Qty	Units	PIERS Commodity Description	HS Code	JOC Code
***	***	***		***

IMPORT BILL OF LADING DETAIL

SHIPPER	CONSIGNEE
SIETE FINCAS DE EDGARDO ESTALLOCA PASO DE LOS ANDES 1226 MENDOZA (5500) MENDOZA ARGENTINA, TEL 0261-4292803	COPA FINA WINE IMPORTS, LLC 2269 CHESTNUT STRET 166 SAN FRANCISCO CALIFORNIA ZIP CODE 94123

NOTIFY PARTY	ALSO NOTIFY
INTERNATIONAL FIRST SERVICE USA, INC. 197 ROUTE 18 SOUTH, SUITE 3000 EAST BRUNSWICK, TEL: 732 545 8444 FAX: 732 545 8440	ORDER

PACKAGING INFORMATION			
Weight:	2,293.00 KG	Measure:	0.00
Quantity:	76.00 PCS	TEUs:	0.40

SHIPMENT DETAIL			
Carrier:	HAPAG-LLOYD A G	Country of Origin:	MEXICO
SCAC:	***	Coastal Region:	
Vessel:	LISBON EXPRESS	Port of Arrival:	2811 OAKLAND
Voyage:	926W	Port of Departure:	20120 MANZANILLO
Bill of Lading Number:	HLCUSCL9A1014185	U.S. Destination:	
Pre Carrier:	VALPARAISO, CHILE (CL) (SAMR)	Foreign Destination:	
IMO Number:	***	Mode of Transport:	10
Inbond Code:		Arrival Date:	12/05/2009
Estimated Value:	***		

AMS COMMODITIES		
Container	Qty	Description
BHCU3113874	76	WINE WINE AND CATALOGS: 45 CASES OF SIETE FINCAS FINE DRY WHITE WINE SAUVIGNON BLANC 2009 ALCOHOL 13.4% VOL. 30 CASES OF SIETE FINCAS FINE DRY WHITE WINE CHARDONNAY 2009 ALCOHOL 13.5% VOL. 1 CASES WITH SAMPLES WITHOUT COMMERCIAL VALUE: 100 CATALOGS COMMERCIAL PROMOTIONAL MATERIALS TOTAL CASES: 76 GROSS WEIGHT 2293,00 KGS NET WEIGHT 1277,00 KGS INVOICE: 0001-00000014 FDA: 10926821170

IMPORT BILL OF LADING DETAIL

MARKS & NUMBERS				
Container		Marks & Numbers		
BHCU3113874		- N/M		

PIERS Commodity Description				
Qty	Units	PIERS Commodity Description	HS Code	JOC Code
***	***	***		***

IMPORT BILL OF LADING DETAIL

SHIPPER	CONSIGNEE
EL CAMPILLO SRL DR JULIO A LEMOS 36 (5501) GODOY CRUZ - MENDOZA TEL 0261-154545204, C.U.I.T.:30-70960520-3	COPA FINA WINE IMPORTS, LLC 2269 CHESTNUT STRET 166 SAN FRANCISCO CALIFORNIA ZIP CODE 94123

NOTIFY PARTY	ALSO NOTIFY
INTERNATIONAL FIRST SERVICE USA, INC. 197 ROUTE 18 SOUTH, SUITE 3000 EAST BRUNSWICK, TEL: 732 545 8444 FAX: 732 545 8440	ORDER

PACKAGING INFORMATION			
Weight:	1,800.00 KG	Measure:	0.00
Quantity:	150.00 PCS	TEUs:	0.40

SHIPMENT DETAIL			
Carrier:	HAPAG-LLOYD A G	Country of Origin:	MEXICO
SCAC:	***	Coastal Region:	
Vessel:	LISBON EXPRESS	Port of Arrival:	2811 OAKLAND
Voyage:	926W	Port of Departure:	20120 MANZANILLO
Bill of Lading Number:	HLCUSCL9B1014185	U.S. Destination:	
Pre Carrier:	VALPARAISO, CHILE (CL) (SAMR)	Foreign Destination:	
IMO Number:	***	Mode of Transport:	10
Inbond Code:		Arrival Date:	12/05/2009
Estimated Value:	***		

AMS COMMODITIES		
Container	Qty	Description
BHCU3113874	150	WINE WINE: 110 CASES X 12 2006 MALBEC 14 % BY VOL 40 CASES X 12 2006 CABERNET SAUVIGNON 14 % BY VOL GROSS WEIGHT 1800,00 KGS NET WEIGHT 1350,00 KGS INVOICE: 0001-00000001 TOTAL CASES: 150 FDA: 19448784490

IMPORT BILL OF LADING DETAIL

MARKS & NUMBERS				
Container	Marks & Numbers			
BHCU3113874	- N/M			

PIERS Commodity Description				
Qty	Units	PIERS Commodity Description	HS Code	JOC Code
***	***	***		***

IMPORT BILL OF LADING DETAIL

SHIPPER	CONSIGNEE
MI TERRUO BODEGAS Y VIEDOS - INVERMEN SA AV COLON 241 1 PISO OF 6 (500) MENDOZA- ARGENTINA, TEL 261-4299962	COPA FINA WINE IMPORTS, LLC 2269 CHESTNUT STRET 166 SAN FRANCISCO CALIFORNIA ZIP CODE 94123

NOTIFY PARTY	ALSO NOTIFY
INTERNATIONAL FIRST SERVICE USA, INC. 197 ROUTE 18 SOUTH, SUITE 3000 EAST BRUNSWICK, TEL: 732 545 8444 FAX: 732 545 8440	ORDER

PACKAGING INFORMATION			
Weight:	4,072.00 KG	Measure:	0.00
Quantity:	291.00 PCS	TEUs:	0.40

SHIPMENT DETAIL			
Carrier:	HAPAG-LLOYD A G	Country of Origin:	MEXICO
SCAC:	***	Coastal Region:	
Vessel:	LISBON EXPRESS	Port of Arrival:	2811 OAKLAND
Voyage:	926W	Port of Departure:	20120 MANZANILLO
Bill of Lading Number:	HLCUSCL9C1014185	U.S. Destination:	
Pre Carrier:	VALPARAISO, CHILE (CL) (SAMR)	Foreign Destination:	
IMO Number:	***	Mode of Transport:	10
Inbond Code:		Arrival Date:	12/05/2009
Estimated Value:	***		

AMS COMMODITIES		
Container	Qty	Description
BHCU3113874	291	WINE WINE: 291 CASES X750 ML OF FINE WINE TOTAL CASES 291 GROSS WEIGHT 4071,76 KGS NET WEIGHT 2169,59 KGS FDA: 15232746866 INVOICE: 0001-00000019

IMPORT BILL OF LADING DETAIL

MARKS & NUMBERS				
Container	Marks & Numbers			
BHCU3113874	- N/M			

PIERS Commodity Description				
Qty	Units	PIERS Commodity Description	HS Code	JOC Code
***	***	***		***

IMPORT BILL OF LADING DETAIL

SHIPPER	CONSIGNEE
FAMILIA CASSONE S.A MITRE 1367 - CIUDAD MENDOZA - ARGENTINA TEL: 54-261-423 3203 FAX: 54-261-423 3203	COPA FINA WINE IMPORTS, LLC 2269 CHESTNUT STRET 166 SAN FRANCISCO CALIFORNIA ZIP CODE 94123

NOTIFY PARTY	ALSO NOTIFY
INTERNATIONAL FIRST SERVICE USA, INC. 197 ROUTE 18 SOUTH, SUITE 3000 EAST BRUNSWICK, TEL: 732 545 8444 FAX: 732 545 8440	ORDER

PACKAGING INFORMATION			
Weight:	2,430.00 KG	Measure:	0.00
Quantity:	162.00 PCS	TEUs:	0.40

SHIPMENT DETAIL			
Carrier:	HAPAG-LLOYD A G	Country of Origin:	MEXICO
SCAC:	***	Coastal Region:	
Vessel:	LISBON EXPRESS	Port of Arrival:	2811 OAKLAND
Voyage:	926W	Port of Departure:	20120 MANZANILLO
Bill of Lading Number:	HLCUSCL9D1014185	U.S. Destination:	
Pre Carrier:	VALPARAISO, CHILE (CL) (SAMR)	Foreign Destination:	
IMO Number:	***	Mode of Transport:	10
Inbond Code:		Arrival Date:	12/05/2009
Estimated Value:	***		

AMS COMMODITIES		
Container	Qty	Description
BHCU3113874	162	WINE WINE: ----- 110 CASES X 12 FINCA LA FLORENCIA MALBEC 2008 X 750 ML 30 CASES OF OBRA PRIMA CABERNET SAUVIGNON 2007 X 750 ML 22 CASES OF OBRA PRIMA ROSADO DE CABERNET SAUVIGNON 2008 X 750 ML TOTAL CASES 162 GROSS WEIGHT 2430,00 KGS NET WEIGHT 1450.71KGS FDA: 10987980552 INVOICE: 0001-00000241 -----

IMPORT BILL OF LADING DETAIL

MARKS & NUMBERS				
Container	Marks & Numbers			
BHCU3113874	- N/M			

PIERS Commodity Description				
Qty	Units	PIERS Commodity Description	HS Code	JOC Code
***	***	***		***

Exhibit

11

Jessica De Vivo

From: Theresa Kuharich [TheresaK@buckeyedist.com]
Sent: Wednesday, October 28, 2009 8:03 AM
To: Charlotte Menager
Cc: Ray Mai
Subject: RE: PO# 382 - AMC USA Rate

Good morning Charlotte,

I am sorry I have not returned your calls. We received a quote from Anita McNeil's new company that was considerably lower than your bid so we are having them move this load for us.

I will contact you again the next time we need to import a container for the opportunity to quote again.

Kind regards,

Theresa Kuharich

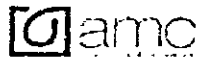
-----Original Message-----

From: Charlotte Menager [mailto:CMenager@us-amctransport.com]
Sent: Tuesday, October 27, 2009 5:05 PM
To: Theresa Kuharich
Cc: Ray Mai
Subject: FW: PO# 382 - AMC USA Rate

Hello Theresa,
How are you?
I left you a voicemail today.
Did you have a chance to review our rate?

Thank you
Charlotte

Charlotte Menager



AMC USA, Inc.
Sales Assistant
Wine & Spirits and General Cargo

Ph# 212 629 0337
F# 212 947 3255
Please visit our website. www.amctransport.com

From: Charlotte Menager

Sent: Tuesday, October 06, 2009 5:07 PM
To: 'Theresa Kuharich'
Subject: PO# 382 - AMC USA Rate

Dear Theresa,
Please find below our rate for 1x20 dry + thermal blanket:

BUCKEYE - RATES 20 DRY ARGENTINA
From Door Mendoza to Door Columbus \$5,400
Tri-axle chassis if needed \$250

Please take note that above rate is INCLUSIVE of below charges:

- All origin FOB Charges - Origin Terminal Charges
- Ocean freight
- US THC
- BAF at current levels, but subject to fluctuations
- CUC
- ISPS
- AMS
- ISF 10+2

Above Rate is EXCLUSIVE of:

- US Customs entry and FDA prior notice
- Taxes & Duties
- Insurance Coverage available at the rate of C&F +110% X 0.35%.

Let me know your comments,
Have a nice day
Charlotte

From: Theresa Kuharich [mailto:TheresaK@buckeyedist.com]
Sent: Thursday, October 01, 2009 1:23 PM
To: Charlotte Menager
Subject: Quote Please

Hello Charlotte:

I am attaching the purchase order that we submitted to Gouguenheim in Argentina. This order is the same as the one's you have helped us ship in the past.

Please send me a quote at your earliest convenience.

If you need any further information, please let me know.

Theresa

Exhibit

12

Jessica De Vivo

From: Magalie Robine [mailto:magalie.robine@us-ifs.com]
Sent: Tuesday, November 10, 2009 9:41 AM
To: NAMSALWIS
Subject: IFS USA Rate request from Wallingford, CT to Cyprus

Good morning!

Can you please give us the rate to ship 40'HC's of spas from door Wallingford CT 06492 to the terminal you serve on the Greek side of Cyprus.

Please provide routing and transit time.

Thanks!
Magalie

Magalie ROBINE
International First Service USA, Inc.
197 Route 18 South, Suite 3000
East Brunswick, NJ 08816
Tel 732 545 8444
Direct 732 214 2626
Cell 347 898 9142
Fax 732 545 8440
visit us at www.ar-ifs.com
our www.us-ifs.com is currently under construction!

Exhibit

13

Jessica De Vivo

From: grosario@turboexpressinc.com
Sent: Friday, November 20, 2009 2:18 PM
To: Magalie Robine
Subject: [FWD: FW: IFS USA Rate request from JFK to Kearny, NJ]

Hi Magalie.

Rate: \$455.00 - fuel in plus \$75.00 Liquor Lic.

If you have any questions, please contact me.

Thank you.

Best regards
Gilbert

Gilbert Rosario
TURBO EXPRESS INT'L CORP.
145-03 156th street
Jamaica, NY 11434
Tel.# 718 723-3686
Fax # 718 723-5270

----- Original Message -----

Subject: [FWD: FW: IFS USA Rate request from JFK to Kearny, NJ]
From: grosario@turboexpressinc.com
Date: Fri, November 20, 2009 11:47 am
To: "Magalie Robine" <MRobine@us-amctransport.com>

Hi Magalie.

Do you know how many skids.

Note: please use this email address.

Thank you.

Best regards
Gilbert

Gilbert Rosario
TURBO EXPRESS INT'L CORP.
145-03 156th street
Jamaica, NY 11434
Tel.# 718 723-3686
Fax # 718 723-5270

1/12/2010

----- Original Message -----

Subject: FW: IFS USA Rate request from JFK to Kearny, NJ
From: TURBO EXPRESS <turboexpress@msn.com>
Date: Fri, November 20, 2009 11:46 am
To: <grosario@turboexpressinc.com>

Best regards,
Gilbert



please don't print this e-mail unless you really need to.

From: magalie.robine@us-ifs.com
To: turboexpress@msn.com
Subject: IFS USA Rate request from JFK to Kearny, NJ
Date: Fri, 20 Nov 2009 11:28:58 -0500

Gilbert

Can you please quote:

From JFK to Kearny, NJ

230cs of wine

3597kgs

Please include all charges

Thanks

Magalie

Magalie ROBINE

International First Service USA, Inc.

197 Route 18 South, Suite 3000

East Brunswick, NJ 08816

Tel 732 545 8444

Direct 732 214 2626

Cell 347 898 9142

Fax 732 545 8440

visit us at www.ar-ifs.com

our www.us-ifs.com is currently under construction!